

VERTICAL COMPLIANCE PACKS

Law Firm Information Security & Client Confidentiality Program

A security program built around a lawyer's professional duties: Texas Disciplinary Rule 1.05 (confidentiality) and the duty of technological competence, informed by ABA Formal Opinions 477R (secure communication) and 483 (data breach obligations).

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Counsel review	Recommended by licensed Texas counsel before first execution

Professional Duty Basis

Client confidences are protected by Texas Disciplinary Rules of Professional Conduct Rule 1.05, and competent representation requires keeping pace with the benefits and risks of relevant technology. ABA Formal Op. 477R calls for reasonable efforts - including encryption where appropriate - when communicating client information, and Op. 483 addresses a lawyer's obligations when a breach occurs, including prompt client notification. This program gives those duties operational teeth.

Program Safeguards

1. Matter-based access control

Access to matter files follows need-to-know; departed personnel lose access the same day; ethical walls are enforced technically when required.

2. Encrypted communication & storage

Email encryption is available for sensitive matters, portals are used for client file exchange, and all firm devices are encrypted at rest.

3. Privileged-data handling

Privileged material is stored only in firm-controlled systems; personal accounts and unmanaged devices are prohibited for client work.

4. Managed detection & response

Every firm endpoint runs managed EDR with 24/7 alerting; email is filtered for phishing and account-takeover indicators.

5. Breach response & client notice

Suspected compromise triggers the incident response plan; affected clients are informed promptly and honestly, consistent with Op. 483 and Texas Sec. 521.053.

6. Business continuity for deadlines

Backups are tested and recovery objectives documented so court deadlines survive hardware loss, ransomware, or disaster.

7. Trust-account payment controls

Wire and trust-account transactions require out-of-band verification to defeat business-email-compromise fraud.

8. Training for legal staff

Attorneys and staff train annually on phishing, BEC, and confidentiality technology duties.

Adoption

Firm name: _____

Managing partner: _____

Adopted on: _____

Signature: _____